

cial appointments"



A. Corruption in the judiciary is collusive corruption, in matters where one party benefits and there is no other party or the State is the other party. The State is not aware of such collusive corruption. That is why there is no complaint. The other corruption charges are made by people who have lost cases in court.

Q. Do you think there is a need for a wider body to look into the cases of corruption in judiciary?

A. A wider body may have problems as far as independence of judiciary is concerned. Now there is no systematic way for complaints to be received. There should be some legislation whereby the complaint can be streamlined and considered by a committee consisting of senior judges, then by some other group of judges or the

chief justice himself. Unless there is a law we can't do it. We follow some method. One can even challenge it. We are not authorised. I don't know if something will happen on these ensuing matters when it is challenged. Because there is no law.

Q. There is an argument that judges may be equipped with legal acumen, but the executive is more interested in looking at candidates' antecedents.

A. Some countries have laws but unless there is a Constitutional amendment or laws are laid down for judges' appointment, we will be constrained to follow the Supreme Court guidelines.

Q. But are you open to the idea of a wider body for appointments?

A. Certainly. Why not? But the body should not be of politically interested persons. It may cause some problems. But the collegium can consult members of the bar. Ultimately the chief justice has to say so and so is suitable for appointment. These are steps for finding out the suitable candidate. But the chief justice will be in a better position to know that. If any other independent body is there to find out the best candidate, at least at the national level, there can be such a body.

Q. Will you be ready to declare your assets?

A. It's not proper for me to say that I want to declare my assets. I am the head of the institution and can go by the views of the Supreme Court judges. It's not my personal thing.

THE ASSET DECLARATION CARRIES A CAVEAT: NO QUERIES WILL BE ENTERTAINED.

ciary feels that if judges' assets are put in public domain, the information can be used for harassment by litigants. While declaring that their assets would be put up on the Supreme Court website, the apex court judges, however, introduced a caveat: they will not entertain queries relating to their assets. Such rules are applicable to IAS and IPS officers who file their assets to the Cabinet Secretariat on an annual basis and have to explain how their wealth has gone up or decreased. These are not made public but the information is invariably used by the Government if an officer is charged for corrupt practices. Law Minister Veerappa Moily is expected to bring in a new act which will include such a provision for the judiciary across the country.

The waning confidence in the judiciary is also due to the inordinate delay in disposal of cases. At a recent chief ministers' conclave in Delhi, the prime minister said the biggest challenge before the judiciary was the disposal of huge backlog of cases. There were 20,307 cases pending in the apex court in November 1999; it almost doubled to 39,780 by 2006 and stood at 50,659 on June 1 this year. In high courts, the pending cases run to over 3.95 million. In the lower courts the number of pending cases, as on March 31 this year, was a staggering 26.7 million. According to the National Crime Records Bureau, there were 7.43 million criminal cases pending all over India in 2007, of which just over 1 million were taken up for trial. Of them, less than half a million ended in conviction. There are more than 10,000 cases where the CBI has filed charge sheets and trials are yet to begin. "Cases against corrupt officials should be completed within three years. We, in the CBI and state anti-corruption bureau, feel it is possible, provided the Government, the judiciary and Parliament are determined and work in coordination," says Ashwani Kumar, director, CBI.

The subordinate courts are the biggest culprits of such burdens. Chief Justice of the Bombay High Court Swatanter Kumar recently admonished lawyers representing the Government saying that they would be fined if they were found seeking unnecessary adjournments and delaying cases. The Government's delaying tactics are best illustrated by the UPA Government's